



Case Decision

Décision du jury

As of WED 31 JUL 2024 at 20:11

CASE No. 28

Event: Women's Skiff	Race: 9
Initiator: FIN	Respondent: Jury
Protest details: 49FX FIN requests in accordance with RRS 66. the jury to reopen case 17 since we have new evidence to present that was not available at the time of the original hearing. Furthermore, we believe the jury has made a significant error in stating the facts found and thus disqualifying FIN in race 9.	
Procedural matters: 1. FIN was represented by Ronja Gronblom. 2. Gasper Strahovnik (coach of FIN) attended the hearing as an observer. 3. Panel members Jamie Sutherland (NZL) and Giorgio Davanzo (ITA) were replaced by Sungchul Jeong (KOR) and Pauline den Burger (NED) in accordance with RRS 66.3(b). A majority of the panel were members of the original panel.	
Facts found: 1. Hearing request no. 17 was lodged on 30 July 2024 at 15:21. 2. The hearing was scheduled at 16:00 and it started on time. 3. During the hearing, FIN did not request more time to prepare. 4. FIN presented slides from the tracking data available for the public. 5. FIN alleged that the International Jury did not find the correct facts in the original hearing.	
Conclusion: 1. The slides from the tracking which FIN presented was coming from the public tracking which was available during the original hearing, therefore the evidence is not new. The requirements in RRS 66.1 for reopening the hearing are not met. 2. The International Jury did not make a significant error in the original hearing. Therefore, the requirements in RRS 66.1 for reopening the hearing are not met.	
Rule(s) applicable: RRS 66.3(b), 66.1 and 66.2	
Decision: Case 17 will not be reopened.	
Jury: Andrus Poksi (EST), Anastazja Lewandowska (POL), Sungchul Jeong (KOR), Rodrigo Guerra (URU), Pauline den Burger (NED)	
Signed: _____ Decision Issued: 31 JUL 2024 Time: 19:35 Andrus Poksi, <u>Chairman</u>	



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Legend:
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